SOUTHERN AFRICA MUSLIMAH NETWORK

(SAMN)

CONSTITUTION

2026

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ESTABLISHED 2022

Registered Office: Sandlane & Devilliers Street, Cathedral Building, Manzini, Eswatini
Postal Address: P.O. Box 195, Matsapha M200, Eswatini

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List of Abbreviations

The following abbreviations are used throughout this Constitution and its Schedules.

Abbreviation	Meaning
ADR	Alternative Dispute Resolution
AGM	Annual General Meeting
AV	Audio-Visual
BAGM	Branch Annual General Meeting
BEC	Branch Executive Committee
CBO	Community-Based Organisation
EDC	Ethics & Disciplinary Committee
EFT	Electronic Funds Transfer
EXCO	Executive Committee
ID	Identification
IFRS	International Financial Reporting Standards
MEL	Monitoring, Evaluation & Learning
NGO	Non-Governmental Organisation
SADC	Southern African Development Community
SAMN	Southern Africa Muslimah Network
SGM	Special General Meeting
UN	United Nations

ARTICLE I: PREAMBLE

We, the Muslim women of Southern Africa, united in faith under the Qur'an and Sunnah, hereby establish this Constitution for the Southern Africa Muslimah Network (SAMN). We are committed to fostering regional solidarity, advancing the rights and empowerment of Muslim women and girls, and promoting their meaningful participation in society. Guided by Islamic principles and a dedication to justice, compassion, and excellence, we pledge to build a unified, influential voice for positive change. This Network will operate with integrity, transparency, and accountability, serving as a bridge for dialogue and cooperation across communities and borders. This Constitution is our covenant to work collectively toward a future where Muslim women thrive and contribute fully to a prosperous and harmonious region.

ARTICLE II: NAME & LEGAL STATUS

1. **Official Name**: Southern Africa Muslimah Network (SAMN).
2. **Legal Status**: A non-profit, non-political, faith-based regional network.
3. **Registered Office**:
   Sandlane & Devilliers Street, Cathedral Building, Manzini, Eswatini.
   Postal Address: P.O. Box 195, Matsapha M200, Eswatini.
4. **Secretariat**: Located at the seat of the incumbent Chairperson.

ARTICLE III: VISION, MISSION & CORE VALUES

- **Vision**: A united Southern Africa where Muslim women thrive through faith, empowerment, and collective action.
- **Mission**: To empower Muslim women and girls by promoting Islamic values, advancing education and economic opportunity, and advocating for rights, health, and regional solidarity.
- **Core Values**: Integrity, Respect, Transparency, Faithfulness, Confidentiality, and Trustworthiness.

ARTICLE IV: OBJECTIVES

SAMN shall work at a continental level to:

1. Promote Unified Islamic Scholarship and Da'wah
   Advance the teachings of the Qur'an and Sunnah across Southern Africa through continental Islamic education initiatives, scholarly exchanges, and standardised da'wah programmes that respect local contexts while strengthening regional religious cohesion.
2. Drive Continental Women's Empowerment Frameworks
   Implement region-wide education, leadership, and economic empowerment programmes for Muslim

women, including continental accreditation of training, cross-border mentorship networks, and a Southern African Muslim Women's Economic Fund.

3. Advocate for Harmonised Women's Rights and Health Policies
   Engage with regional bodies such as the African Union and SADC to advocate for policies that protect and promote the rights, health, and well-being of Muslim women, aligned with both Islamic principles and continental human rights frameworks.
4. Foster Pan-African Solidarity and Civic Leadership
   Build a robust continental network of Muslim women leaders to enhance civic participation, community development, and collective action on regional issues such as climate resilience, social justice, and democratic engagement.
5. Safeguard and Showcase Islamic Cultural Heritage in Africa
   Document, preserve, and celebrate the diverse cultural and Islamic heritage of Muslim communities across Southern Africa through continental cultural festivals, digital archives, and intercultural dialogue initiatives.
6. Mobilise Youth for Continental Leadership and Innovation
   Establish a SAMN Continental Youth Council to empower young Muslim women through leadership programmes, innovation hubs, and intergenerational policy dialogues that address regional challenges and opportunities.
7. Shape Continental Policy Through Strategic Influence
   Develop SAMN as a recognised policy voice at regional forums, producing research, position papers, and advocacy campaigns to influence legislation and programmes affecting Muslim women and families across Southern Africa.
8. Coordinate Humanitarian Response and Social Protection Systems
   Lead and coordinate regional humanitarian efforts to support vulnerable groups—including refugees, orphans, and internally displaced persons—through joint resource mobilisation, psychosocial support networks, and crisis response mechanisms.
9. Strengthen Multilateral and Global Partnerships
   Forge and sustain strategic collaborations with continental and international Islamic bodies, women's networks, UN agencies, and development partners to amplify SAMN's impact, share best practices, and secure sustainable resources for regional initiatives.

ARTICLE V: MEMBERSHIP

5.1 Categories of Membership

The Southern Africa Muslimah Network (SAMN) shall have three categories of membership:

1. **Honorary Member**
2. **Associate Member**
3. **Regular Member (Ambassador)**

5.2 General Eligibility & Principles

- All applicants must subscribe to the objectives and core values of SAMN.
- All members must adhere to the SAMN Code of Conduct (Schedule V).
- Membership is contingent upon the approval of the Executive Committee (EXCO) or its designated sub-committee.
- Membership may be suspended or terminated as per the disciplinary procedures outlined in Article XI.

5.3 Membership Categories: Definitions, Eligibility, Rights & Responsibilities

A. Honorary Member

- **Definition:** A title conferred upon individuals of high distinction who have rendered exceptional and sustained service to the cause of Muslim women's empowerment, Islamic scholarship, humanitarian work, or regional development, in alignment with SAMN's mission.
- **Eligibility:**
  - Nomination by any Executive Committee member or a recognised Country Branch.
  - Approval by a **two-thirds (2/3) majority vote** of the Executive Committee.
  - Not a practicing politician in active office.
- **Rights:**
  - Invitation to SAMN events, conferences, and Annual General Meetings as a guest of honour.
  - May be invited to serve in an advisory capacity (e.g., on a Board of Patrons or Advisory Council).
  - Recognition in SAMN publications and communications.
  - **No voting rights** and **ineligible to hold elected office** within SAMN.
- **Responsibilities:**
  - Uphold the good name and reputation of SAMN.
  - Provide guidance and support when called upon, within reason.

B. Associate Member

- **Definition:** An individual (Muslim or non-Muslim) or organisation that supports the objectives of SAMN but does not meet the criteria for, or seek, full voting membership.
- **Eligibility:**
  - Individuals or legally registered organisations (NGOs, CBOs, academic institutions, etc.) operating in or concerned with Southern Africa.
  - Submission of a completed application form and a statement of interest.
  - Approval by a simple majority of the Executive Committee.
- **Rights:**
  - Receive SAMN communications, newsletters, and reports.
  - Participate in SAMN open conferences, training programmes, workshops, and campaigns.

  - May be invited to contribute expertise to working groups, task forces, or committees in a **non-voting, advisory capacity**.
  - **No voting rights** in SAMN governance and **ineligible to hold elected office**.
- **Responsibilities:**
  - Pay annual membership dues as prescribed in Schedule I.
  - Adhere to SAMN's Code of Conduct and publicly represent SAMN's values appropriately.

C. Regular Member (Ambassador)

- **Definition:** The core membership of SAMN, consisting of practicing Muslim women who actively contribute to the Network's mission and hold full governance rights. They are the ambassadors of SAMN in their communities.
- **Eligibility:**
  - Must be a female, practicing Muslim, committed to the teachings of the Qur'an and Sunnah.
  - Must be at least 18 years of age.
  - Must be a resident or national of a Southern African country, or have demonstrable ties to the region.
  - Must complete the official membership application and endorsement process.
  - Must be affiliated with and endorsed by a recognised **SAMN Country Branch** where one exists, or directly by the Continental Secretariat.
  - Must commit to upholding the **SAMN Code of Conduct**: Integrity, Confidentiality, Trustworthiness, Respect, Faithfulness, and Transparency.
  - Payment of the prescribed registration and annual membership fees (Schedule I).
- **Rights:**
  - **Full voting rights** at the Annual General Meeting (AGM) and any Special General Meetings.
  - Eligibility to **stand for and hold elected office** at the branch, national, and continental levels (e.g., Branch Executive, EXCO).
  - Priority access to SAMN leadership programmes, exclusive trainings, and resource materials.
  - Right to participate in all SAMN committees, forums, and decision-making processes.
  - Right to receive official SAMN designation (e.g., "SAMN Ambassador") for community representation.
- **Responsibilities:**
  - Actively promote and work towards the objectives of SAMN.
  - Maintain updated membership status through timely payment of dues.
  - Participate in SAMN activities, meetings, and capacity-building initiatives.
  - Serve as a focal point for SAMN advocacy, mentorship, and community mobilisation within her sphere of influence.
  - Provide annual activity reports to her respective Country Branch or the Secretariat.

5.4 Application, Registration & Cessation

1. **Application Process:** All applications shall be submitted in the prescribed form to the Secretariat or relevant Country Branch, accompanied by the required documentation and fees.
2. **Approval:** The Executive Committee (or a Membership Sub-Committee it delegates) shall review and approve applications within 60 days.
3. **Register:** The Secretariat shall maintain an official, confidential register of all members.
4. **Cessation of Membership:** Membership ceases through:
   - Written resignation submitted to the Secretariat.
   - Failure to pay dues, resulting in lapse and termination in accordance with Schedule I, Article 4, Section 4.3.
   - Expulsion as a result of disciplinary action under Article XI.
   - Death (in the case of individuals) or dissolution (in the case of organisations).

5.5 Country Branches & Membership

- Regular Members (Ambassadors) shall be organised into **Country Branches** in their nation of residence/operation.
- Each Country Branch shall maintain its own member register, which shall be synchronised with the Continental Secretariat annually.
- The Country Branch is the primary point of engagement, support, and accountability for its members.

ARTICLE VI: GOVERNANCE STRUCTURE

6.1 Executive Committee (EXCO)

The highest decision-making body at the continental level.

Composition:

1. **Chairperson**
2. **Vice Chairperson**
3. **Secretary**
4. **Vice Secretary**
5. **Treasurer**
6. **Communications Officer**

Terms: Two-year terms, renewable once.

Election: By Regular Members at the Annual General Meeting.

6.2 Roles & Responsibilities (Detailed in Schedule III)

The roles, responsibilities, and authorities of each officer are set out in Schedule III.

ARTICLE VII: MEETINGS, PROCEEDINGS & DECISION-MAKING

7.1 Types of Meetings

7.1.1 Annual General Meeting (AGM)

- **Frequency:** Held once in every calendar year, within six (6) months following the end of the fiscal year (December 31st).
- **Purpose:** To receive annual reports, approve audited financial statements, elect Executive Committee (EXCO) members, consider constitutional amendments, and decide on major strategic directions.
- **Convening Authority:** Called by the Executive Committee. Notice and agenda shall be disseminated by the Secretariat.

7.1.2 Executive Committee (EXCO) Meetings

- **Frequency:** Held at minimum once per quarter (quarterly), with the provision for additional meetings as operational needs demand.
- **Purpose:** To conduct the regular governance, strategic oversight, and operational decision-making of SAMN between AGMs.
- **Convening Authority:** Called by the Chairperson or upon the written request of at least three (3) EXCO members.

7.1.3 Special General Meetings (SGM)

- **Convening:** May be called by:
  a) The Executive Committee; or
  b) A written petition signed by at least twenty percent (20%) of the total eligible voting Regular Members.
- **Purpose:** To address specific, urgent matters of constitutional or existential importance that cannot wait until the next AGM (e.g., votes of no confidence, urgent constitutional crises, dissolution).

7.1.4 Committee Meetings

- **Frequency:** As determined by each Standing Committee (Finance, Ethics, etc.), in accordance with their mandates in Schedule IV.
- **Reporting:** Minutes and recommendations from Committee meetings shall be reported to EXCO at its next scheduled meeting.

7.2 Notice and Agenda

7.2.1 Notice Period

- **AGM & SGM:** Written notice, including the draft agenda, shall be sent to all members at least thirty (30) calendar days in advance. Notice shall be sent via email and posted on the official SAMN communication platforms.
- **EXCO Meetings:** Written notice and agenda shall be circulated at least fourteen (14) calendar days in advance.

- **Urgent EXCO Meetings:** For matters of extreme urgency, a meeting may be called with seventy-two (72) hours' notice, provided the reason for urgency is stated.

7.2.2 Agenda Setting

- The draft agenda for the AGM and SGM shall be prepared by the Executive Committee.
- Regular Members may submit items for the AGM agenda by sending a written, duly seconded motion to the Secretariat at least forty-five (45) days before the meeting.
- The final agenda shall be circulated with the meeting notice.

7.3 Quorum Requirements

Quorum is defined as the minimum number of members required to be present to legally conduct business.

- **Annual General Meeting (AGM):** Quorum shall be fifty percent plus one (50% + 1) of the total eligible voting Regular Members as recorded in the official register at the time notice is issued.
- **Special General Meeting (SGM):** Quorum shall be one-third (1/3) of the total eligible voting Regular Members.
- **Executive Committee (EXCO) Meeting:** Quorum shall be a simple majority (more than 50%) of the total elected EXCO members.
- **Committee Meetings:** Quorum shall be a simple majority of the appointed members of that committee.

7.3.1 Lack of Quorum

- If a quorum is not present within thirty (30) minutes of the scheduled start time for an AGM or SGM, the meeting shall be adjourned.
- A reconvened meeting, announced within seven (7) days for a date not less than fourteen (14) days later, shall proceed regardless of the number of members present, provided due notice was given.
- If an EXCO meeting lacks quorum, it shall be rescheduled.

7.4 Voting Rights and Procedures

7.4.1 Eligibility to Vote

- **AGM & SGM:** Only **Regular Members (Ambassadors)** whose membership has been active, with all dues paid, for a continuous period of **at least twelve (12) months** prior to the date of the meeting shall be eligible to vote.
- **EXCO & Committee Meetings:** Only duly appointed/elected members of that body may vote.

7.4.2 Voting Methods

- **General Meetings (AGM/SGM):** Voting shall be by:
  a) **Show of hands** for routine motions; or
  b) **Secret ballot** for elections, constitutional amendments, votes of no confidence, or upon the request of at least ten (10) voting members present.

- **Proxy Voting:** A voting Regular Member unable to attend an AGM or SGM may appoint another voting Regular Member as their proxy by submitting a signed proxy form to the Secretariat at least forty-eight (48) hours before the meeting. No member may hold more than two (2) proxy votes.
- **EXCO & Committee Meetings:** Voting is typically by show of hands. A secret ballot may be requested by any member.

7.4.3 Decision Rule (Majority Required)

- **Simple Majority:** Unless otherwise specified in this Constitution, all decisions shall be made by a **simple majority** (more than 50%) of the votes cast by eligible voters present (including valid proxies).
- **Special Majorities (as specified elsewhere in this Constitution):**
  - **Two-Thirds (2/3) Majority:** Required for:
    - Amendments to the Constitution (Article XII, Section 12.1).
  - **Two-Thirds (2/3) of EXCO:** Required for specific executive decisions as outlined (e.g., approval of honorary members, major budget revisions, and ratification of an expulsion under Article 11.4).
  - **Three-Quarters (3/4) Majority:** Required for the dissolution of the Network (Article XII, Section 12.2).

7.5 Minutes and Records

- Accurate minutes shall be kept for all AGMs, SGMs, and EXCO meetings, recording attendees, decisions, and action items.
- Draft minutes shall be circulated within **fourteen (14) days** of the meeting.
- Minutes shall be formally approved (with or without amendments) at the next meeting of the same body and signed by the Chairperson and Secretary.
- Approved minutes constitute the official record of SAMN's proceedings.

ARTICLE VIII: FINANCIAL MANAGEMENT, AUDIT & ACCOUNTABILITY

8.1 Fiscal Year

The financial year of SAMN shall commence on the **1st day of January** and end on the **31st day of December** of each calendar year.

8.2 Financial Objectives and Principles

All financial activities of SAMN shall be guided by the following principles:

1. **Shariah Compliance:** All financial transactions, investments, and fundraising activities shall be conducted in accordance with Islamic principles, avoiding *riba* (interest), *gharar* (excessive uncertainty), and investment in prohibited (*haram*) industries.

2. **Sustainability:** To ensure the long-term viability of the Network through diversified income streams, prudent financial planning, and the establishment of a reserve fund.
3. **Stewardship:** To manage all resources (financial, human, and physical) with the utmost care, responsibility, and efficiency as a sacred trust (*amanah*).
4. **Impact-Oriented:** To allocate funds strategically to maximise positive impact in line with SAMN's strategic objectives and for the benefit of its target beneficiaries.

8.3 Sources of Income

SAMN's income may be derived from, but not limited to, the following sources:

1. Membership fees and dues (as per Schedule I).
2. Donations, grants, and Zakat/Sadaqah from individuals and institutions.
3. Proceeds from fundraising events and campaigns.
4. Income-generating projects and social enterprises run in accordance with Shariah principles.
5. Grants from governments, regional bodies, and international development partners.
6. Legacies and endowment funds.

8.4 Banking and Financial Controls

8.4.1 Bank Accounts

1. SAMN shall maintain one or more bank accounts in its official name at reputable financial institutions.
2. Country Branches shall maintain separate accounts in their official branch names, as detailed in Schedule II.
3. All accounts shall be operated in compliance with national laws and the financial policies of SAMN.

8.4.2 Authorised Signatories

1. For the Continental Secretariat's primary operational accounts, the **Chairperson, Treasurer, and Secretary** shall be the mandated signatories.
2. Any two (2) of the three (3) signatories must jointly authorise all transactions above a threshold to be defined in the Financial Policy Manual.
3. For Country Branch accounts, the **Branch Chairperson and Branch Treasurer** shall be the mandated signatories, operating under thresholds and controls set by the Continental Finance Committee.

8.4.3 Budgeting Process

1. The Treasurer, with the Finance Committee, shall prepare a draft Annual Operating Budget for the forthcoming fiscal year.
2. The draft budget shall be reviewed, amended if necessary, and approved by the Executive Committee **before the commencement of the fiscal year**.
3. The approved budget shall be presented for noting and ratification at the Annual General Meeting (AGM).

8.5 Expenditure and Use of Funds

1. Funds shall be used **exclusively** to advance the objectives and purposes of SAMN as outlined in this Constitution.
2. No portion of the income or property of SAMN shall be paid, transferred, or distributed directly or indirectly to any member, officer, or trustee, except as:
   a) Reasonable compensation for services actually rendered.
   b) Reimbursement for actual, receipted expenses incurred in the legitimate performance of SAMN duties, as per the approved expense policy.

8.6 Financial Reporting and Audit

8.6.1 Financial Reporting

1. The Treasurer shall present a **Quarterly Financial Report** to the Executive Committee, summarising income, expenditure, and bank balances against the approved budget.
2. An **Annual Financial Report**, comprising a Statement of Financial Position (Balance Sheet) and a Statement of Activities (Income & Expenditure), shall be prepared at the end of each fiscal year.

8.6.2 Independent Audit

1. The accounts of SAMN shall be subject to an **annual independent audit** conducted by a qualified, external auditor or audit firm registered with the relevant national professional body.
2. The auditor shall be appointed by the Executive Committee upon the recommendation of the Finance Committee, and ratified by the AGM.
3. The audit shall be conducted in accordance with International Financial Reporting Standards (IFRS) or applicable national standards.
4. The audited financial statements, together with the auditor's report, shall be completed and submitted to the Executive Committee within **four (4) months** of the fiscal year-end.

8.6.3 Submission to Authorities & Transparency

1. A copy of the audited financial statements and annual report shall be filed with the relevant regulatory authorities in the country where SAMN is registered, as required by law.
2. The full set of audited financial statements and the auditor's report shall be presented to all members at the Annual General Meeting.
3. An abridged, public version of the annual financial report shall be made available on SAMN's official website to ensure transparency to donors, partners, and the public.

8.7 Finance Committee

The Finance Committee, as constituted under Schedule IV, shall have oversight of all financial matters, including reviewing the annual budget, monitoring financial performance, and overseeing the audit process.

8.8 Assets and Property

1. All assets (movable and immovable) purchased or acquired in the name of SAMN shall be the property of the Network.
2. A permanent register of assets shall be maintained by the Secretariat, recording description, date of acquisition, value, location, and custodian.
3. The disposal of any significant asset shall require prior approval from the Executive Committee based on a recommendation from the Finance Committee.

8.9 Financial Policy Manual

The Executive Committee shall develop and maintain a comprehensive Financial Policy Manual, which shall detail all procedures related to budgeting, procurement, expense reimbursement, asset management, and internal controls. This manual shall be an operational extension of this Article.

ARTICLE IX: STANDING COMMITTEES

SAMN shall have the following Standing Committees. Their mandates, composition, and functions are set out in Schedule IV:

1. Finance Committee
   Oversees financial planning, budgeting, reporting, audit, and compliance (Schedule IV, Article 1).
2. Ethics & Disciplinary Committee (EDC)
   Upholds the Code of Conduct and administers complaints, investigations, and disciplinary recommendations (Schedule IV, Article 2).
3. Communications Committee
   Shapes and protects SAMN's public voice, brand, and digital presence (Schedule IV, Article 3).
4. Projects Committee
   Oversees the design, implementation, monitoring, and evaluation of programmes and projects (Schedule IV, Article 4).
5. Convention Committee
   Plans and delivers the Annual General Meeting, Continental Convention, and other major gatherings (Schedule IV, Article 5).
6. Appeals Committee
   Provides final internal appellate review of disciplinary decisions (Schedule IV, Article 6).

ARTICLE X: BOARD OF TRUSTEES (FOUNDERS)

10.1 Establishment and Name

The Board of Trustees, also known as the Founders' Council, is hereby established as the highest moral and strategic custodians of the Southern Africa Muslimah Network (SAMN). This body embodies the original

vision, ensures institutional memory, and provides independent, high-level guidance to safeguard the Network's long-term integrity and mission.

10.2 Composition and Appointment

10.2.1 Number of Trustees

The Board of Trustees shall consist of a minimum of **three (3)** and a maximum of **five (5)** members.

10.2.2 Founding Trustees

The initial Board of Trustees shall be composed of the principal founders and visionaries who conceived and formally established SAMN, as named in the inaugural resolution.

10.2.3 Subsequent Appointments

Upon the death, resignation, or removal of a Trustee, a successor shall be appointed as follows:

1. **Nomination:** Nominations may be made by any sitting Trustee or by the Executive Committee (EXCO). Nominees must be individuals of:
   - Unquestionable integrity and commitment to Islamic principles.
   - Significant and proven contribution to the advancement of Muslim women, Islamic scholarship, or community development in Southern Africa.
   - Demonstrated wisdom, strategic vision, and a deep understanding of SAMN's history and mission.
2. **Selection:** The successor shall be selected by consensus of the remaining **Trustees**. In the absence of consensus, a vote requiring a majority of the sitting Trustees shall decide.
3. **Confirmation:** The selected nominee must be formally confirmed by a two-thirds (2/3) majority vote of the Executive Committee (EXCO).

10.3 Qualifications and Tenure

10.3.1 Qualifications

A Trustee must:

- Be a Muslim in good standing, committed to the teachings of the Qur'an and Sunnah.
- Have no history of financial impropriety or ethical misconduct.
- Not be a currently serving elected member of the Executive Committee (EXCO) to maintain independence.
- Possess the capacity and willingness to serve the Network selflessly.

10.3.2 Tenure

Trustees shall hold office for life (ad vitam), unless removed for just cause as defined in Section 10.6. This lifelong tenure is to ensure stability, continuity, and the preservation of the Network's founding ethos across generations.

10.4 Roles, Functions, and Powers

10.4.1 Core Functions

The Board of Trustees shall serve as the ultimate guardian of SAMN's mission and constitutional values. Its primary functions are:

1. **Vision Custodianship:** Ensure all major strategic directions remain true to the founding vision and Islamic principles.
2. **Constitutional Guardian:** Act as the final interpretive authority on the SAMN Constitution in cases of dispute, subject to the amendment process in Article XII.
3. **Strategic Counsel:** Provide high-level, non-binding advice and counsel to the Executive Committee on matters of existential importance, long-term strategy, and major crises.
4. **Institutional Memory:** Preserve the history, legacy, and core narrative of SAMN.
5. **Ambassadorial Role:** Represent SAMN at the most senior levels, lending credibility and gravitas to the Network's advocacy and partnerships.

10.4.2 Reserve Powers

The Trustees hold the following specific reserve powers:

1. To appoint an independent chairperson for the **Appeals Committee** (Schedule IV, Article 6).
2. To initiate, upon a unanimous vote, a **special independent audit** of the Network's affairs if there is credible evidence of systemic failure in governance or financial integrity that EXCO has failed to address.
3. To mediate, as a council of elders, in an irreconcilable and severe conflict within the Executive Committee that paralyses the Network's operations.
4. To grant final approval for any decision to **alter the fundamental name, core Islamic identity, or core purpose** of SAMN, as originally established.

10.5 Meetings and Proceedings

10.5.1 Meeting Frequency

The Board of Trustees shall convene at least once per calendar year in a formal session. Additional meetings may be called by the Chair of the Trustees or upon the request of a majority of Trustees.

The Trustees shall elect one of their number as Chair of the Trustees by a majority vote of the sitting Trustees. The Chair presides over meetings of the Board and acts as its representative, and may be replaced by a majority vote of the sitting Trustees.

10.5.2 Quorum and Decision-Making

- **Quorum:** For any meeting to be valid, a minimum of two-thirds (2/3) of the sitting Trustees must be present.
- **Decision Rule:** Trustees shall strive to operate by consensus. Where a vote is necessary, decisions shall be made by a simple majority of those present, except for the exercise of Reserve Powers (10.4.2), which may require higher thresholds as specified.

- **Minutes:** Summary minutes of deliberations shall be recorded and a non-confidential summary shared with the Executive Committee.

10.5.3 Interface with Executive Committee

- The Chairperson of the Executive Committee shall provide the Board of Trustees with an annual comprehensive report on the state of the Network.
- The Trustees may request specific reports or invite EXCO members to their meetings for consultation.
- The relationship is one of oversight and guidance, not executive management. Trustees do not manage day-to-day operations.

10.6 Removal, Resignation, and Vacancies

10.6.1 Removal for Cause

A Trustee may be removed from office for just cause before the expiry of their lifetime tenure. Just cause includes:

- Physical or mental incapacity rendering them unable to fulfil their duties.
- Conviction for a criminal offence involving dishonesty or moral turpitude.
- Gross misconduct or actions that bring SAMN into profound disrepute.
- Persistent failure to participate in Trustee duties without valid reason.
- Process: Removal requires a unanimous vote by all *other* sitting Trustees, followed by ratification through a two-thirds (2/3) majority vote at a specially convened General Meeting of voting members.

10.6.2 Resignation

A Trustee may resign by submitting a written resignation to the Chair of the Trustees and the Chairperson of the Executive Committee.

10.6.3 Filling Vacancies

Vacancies shall be filled as per the appointment process outlined in Section 10.2.3.

10.7 Indemnification

Trustees shall serve in a voluntary, non-remunerated capacity. Reasonable expenses incurred in the direct performance of their duties may be reimbursed upon presentation of receipts, in accordance with the Financial Policy Manual. SAMN shall indemnify Trustees against personal liability for acts done in good faith in their official capacity, to the fullest extent permitted by law.

ARTICLE XI: CODE OF CONDUCT, DISCIPLINE & DISPUTE RESOLUTION

11.1 Governing Principles

All members, officers, trustees, staff, and volunteers of the Southern Africa Muslimah Network (hereafter "Covered Individuals") are bound by the SAMN Code of Conduct as detailed in Schedule V of this Constitution. Adherence to this Code is a fundamental condition of association with SAMN.

11.2 Jurisdiction and Application

1. The **Ethics & Disciplinary Committee (EDC)**, constituted under Schedule IV, Article 2, shall have the sole authority to receive complaints, investigate alleged breaches, and recommend disciplinary action.
2. This disciplinary framework applies to conduct occurring during official SAMN activities, in SAMN venues, on SAMN digital platforms, or any private conduct that demonstrably brings the Network into public disrepute or severely undermines its mission.

11.3 Complaint and Investigation Procedure

The procedure shall strictly follow the process outlined in **Schedule V, Article 4**, ensuring:

- **Right to be Informed:** The respondent (accused party) has the right to receive a written copy of the complaint.
- **Right to be Heard:** Both the complainant and respondent have the right to present their case, provide evidence, and suggest witnesses.
- **Presumption of Good Faith:** All parties are presumed to be acting in good faith until evidence suggests otherwise.
- **Confidentiality:** Proceedings shall be conducted with the utmost confidentiality to protect all parties, consistent with the requirements of a fair investigation.
- **Timeliness:** Investigations shall be concluded within the timeframe stipulated in Schedule V, with provisions for extension in complex cases.

11.4 Sanctions

Based on the findings and recommendations of the EDC, and upon ratification by the Executive Committee (EXCO), the following sanctions may be imposed, proportionate to the severity of the breach. Expulsion requires ratification by a two-thirds (2/3) majority of EXCO:

1. **Formal Written Warning:** For minor or first-time breaches.
2. **Censure:** A public reprimand within relevant SAMN bodies.
3. **Suspension of Privileges:** Temporary removal of voting rights, office-holding eligibility, or participation in specific activities for a defined period.
4. **Removal from Office:** Immediate dismissal from any elected or appointed position within SAMN.
5. **Suspension of Membership:** Temporary revocation of all membership rights and privileges.

6. **Expulsion:** Permanent termination of membership and all association with SAMN.

11.5 Appeals Process

1. A Covered Individual found in breach and sanctioned has the right to appeal the decision.
2. Appeals must be lodged in writing with the **Chair of the Appeals Committee** within **fourteen (14) calendar days** of receiving the written decision, as per **Schedule V, Article 5**.
3. The Appeals Committee shall conduct its review based on the record of the EDC proceedings. Its decision, made in accordance with Schedule V, is **final and binding** within SAMN's internal governance structure.

11.6 Mediation and Alternative Dispute Resolution (ADR)

SAMN encourages the resolution of conflicts between members through mediation before escalating to formal complaints.

- The EDC may, at its discretion and with the consent of all parties involved, appoint a trained mediator to facilitate a resolution.
- A successful mediated agreement, signed by all parties, shall be considered a full and final settlement of the matter and shall preclude further disciplinary action on the same issue.

ARTICLE XII: AMENDMENTS AND DISSOLUTION

12.1 Amendments to the Constitution

12.1.1 Proposal of Amendments

1. Amendments to this Constitution may be proposed by:
   a) A resolution of the **Executive Committee (EXCO)**; or
   b) A petition signed by at least **twenty percent (20%)** of the total eligible voting Regular Members (Ambassadors).
2. The proposed amendment(s) must be submitted in writing to the Secretariat, clearly stating the current text, the proposed new text, and the rationale for the change.

12.1.2 Procedure for Adoption

1. **Notice:** The full text of any proposed amendment(s) shall be circulated to **all members**, alongside the notice for the Annual General Meeting (AGM) or a Special General Meeting (SGM) called for that purpose. This notice must be given at least **thirty (30) calendar days** prior to the meeting.
2. **Debate:** The proposed amendment(s) shall be presented, explained, and debated at the AGM or SGM.
3. **Vote:** Adoption of a constitutional amendment requires a **two-thirds (2/3) majority vote** of the eligible voting members **present and voting** (including valid proxies) at the meeting where quorum is met.
4. **Effective Date:** Unless otherwise specified in the amendment resolution, all amendments shall take effect immediately upon their adoption.

12.2 Dissolution of the Network

12.2.1 Initiation of Dissolution

1. A motion for the dissolution of SAMN may be proposed only by:
   a) A unanimous resolution of the Board of Trustees; or
   b) A resolution of the Executive Committee supported by a two-thirds (2/3) majority of its members.
2. Such a motion must be based on the conclusion that the Network's objectives have been fully achieved, are impossible to achieve, or that its continued existence is no longer viable or beneficial.

12.2.2 Procedure for Dissolution

1. **Special General Meeting:** Upon receiving a valid dissolution motion, the Executive Committee must convene a Special General Meeting (SGM) exclusively for this purpose within ninety (90) days.
2. **Notice:** Notice of the SGM, explicitly stating the motion for dissolution and its reasons, shall be sent to all members at least sixty (60) calendar days in advance.
3. **Quorum:** The quorum for a dissolution SGM shall be fifty percent (50%) of the total eligible voting Regular Members.
4. **Vote:** The resolution for dissolution shall be adopted only if it is passed by a three-quarters (3/4) majority of the eligible voting members present and voting (including valid proxies) at the SGM.

12.2.3 Winding Up and Asset Distribution

1. Upon the passing of a dissolution resolution, the Executive Committee shall act as the liquidating body, or appoint a suitable liquidator, to wind up the affairs of SAMN.
2. After settling all just debts, liabilities, and obligations of the Network, any remaining net assets **shall not be distributed to any member or private individual**.
3. All remaining assets shall be transferred, in their entirety, to one or more **registered Islamic charitable organisations** within the Southern African region, whose missions and activities most closely align with the original objectives of SAMN. The selection of the recipient organisation(s) shall be determined by the final Executive Committee in consultation with the Board of Trustees.
4. A final report on the dissolution and asset transfer shall be filed with the relevant government authorities as required by law.

ARTICLE XIII: ENDORSEMENT, ADOPTION, AND COMMENCEMENT

This Constitution, comprising all its Articles and Schedules, represents the supreme governing document of the Southern Africa Muslimah Network (SAMN).

13.1 Adoption

This Constitution was duly proposed, debated, and adopted by the Founding Assembly of the Southern Africa Muslimah Network on this **5th** day of **December 2025** in **Leribe : LESOTHO**

13.2 Endorsement

We, the undersigned, as the duly elected/constituted inaugural leadership, hereby endorse and certify this Constitution as the foundational law of the Network.

Chairperson of the Executive Committee:

Name: **Nazeerah Promise Dlamini**

Signature: 

Date: 6th February 2026

Secretary of the Executive Committee:

Name: **Lerato Mariam Seutloali**

Signature: 

Date: 6th February 2026

Witness (Trustee/Founder):

Name: **Zaynab Angeline Kuware**

Signature: 

Date: 6th February 2026

13.3 Commencement and Supremacy

This Constitution shall come into full force and effect immediately upon its endorsement. Any previous constitutions, bylaws, or rules of association are hereby repealed. In the event of any conflict between this Constitution and any other policy, resolution, or action of SAMN, the provisions of this Constitution shall prevail.

ARTICLE XIV: SCHEDULES & APPENDICES

This Constitution shall be supplemented by the following Schedules, which form an integral part thereof and provide detailed operational provisions:

1. Schedule I: Membership Fees & Dues
   Contains the financial structure, payment terms, and policies related to all membership categories.
2. Schedule II: Country Branch Structures
   Outlines the requirements, governance, reporting, and operational framework for establishing and managing SAMN Country Branches.
3. Schedule III: Duties of Officers
   Defines the specific roles, responsibilities, and authorities of each elected officer within the Executive Committee (EXCO).
4. Schedule IV: Committee Functions
   Details the mandate, composition, key responsibilities, and operating procedures for each Standing Committee of SAMN.
5. Schedule V: Code of Conduct
   Establishes the ethical standards, behavioural expectations, disciplinary procedures, and appeals process binding upon all members and representatives of SAMN.

SCHEDULE I: MEMBERSHIP FEES & DUES

Article 1: Purpose and Scope

1.1 This Schedule establishes the financial obligations and procedures for all membership categories within the Southern Africa Muslimah Network (SAMN).
1.2 The fees and dues collected are essential for ensuring the sustainable operation, programme delivery, administrative functions, and continental growth of SAMN, in fulfilment of its strategic objectives.
1.3 All financial contributions shall be managed with transparency, accountability, and in strict accordance with Islamic principles governing financial transactions.

Article 2: Fee Structure by Membership Category

All fees under this Schedule are denominated and payable in South African rand (R).

2.1 Honorary Members

- **Annual Membership Fee:** None.
- **Registration/Application Fee:** None.
- **Note:** While no fees are required, voluntary contributions to support specific SAMN programmes are welcomed and shall be acknowledged appropriately.

2.2 Associate Members

- **Individual Associate Members:**
  - **Annual Membership Fee:** R250.00 (two hundred and fifty rand).
  - **One-time Registration/Processing Fee:** R200.00 (two hundred rand), payable upon application approval.
- **Organisational Associate Members (NGOs, CBOs, Academic Institutions):**
  - **Annual Membership Fee:** R1,000.00 (one thousand rand).
  - **One-time Registration/Processing Fee:** R250.00 (two hundred and fifty rand), payable upon application approval.

2.3 Regular Members (Ambassadors)

- **New Member Fee:** R300.00 (three hundred rand), payable by new members on joining. This fee covers administrative costs for onboarding, credential verification, and the issuance of a membership certificate/identification.
- **Annual Renewal Fee:** R100.00 (one hundred rand), payable annually by existing members on or before 1 January of each year.
- **Country Branch Dues:** Regular Members may be subject to additional, minimal annual dues levied by their respective Country Branch to support local activities. Such dues must be pre-approved by the Continental Executive Committee.

Article 3: Payment Terms, Methods, and Administration

3.1 Payment Cycle and Due Dates

- The membership financial year runs from 1 January to 31 December.
- **Renewal Invoices:** Annual membership fees for all categories are due in full on or before 1 January of each year.
- **New Members:** Members joining after 1 January shall pay a pro-rated annual fee for their first year, calculated from the first day of the month following their application approval.
- **Grace Period:** A grace period of thirty (30) calendar days from the due date (until 31 January) is permitted for payment without penalty.

3.2 Approved Payment Methods

Payments shall be accepted through the following secure channels:

- Direct Bank Transfer to the official SAMN continental bank account.
- Secure Online Payment Portal via the SAMN website.
- Mobile Money/Electronic Funds Transfer (EFT) to designated accounts in respective countries, as managed by the Country Branch Treasurer.
- All payments must include a clear reference: Member Name + Membership ID Number.

3.3 Receipts and Record-Keeping

- Official electronic receipts shall be issued by the Continental Secretariat or designated Country Branch Treasurer within seven (7) days of payment confirmation.
- The Continental Treasurer shall maintain a centralised, confidential register of all membership payments.

Article 4: Consequences of Non-Payment and Reinstatement

4.1 Delinquency and Suspension

1. Members whose fees remain unpaid after the 30-day grace period (beyond 31 January) shall be deemed “Members in Arrears.”
2. A formal reminder shall be issued by the Secretariat.
3. If payment is not received within sixty (60) days of the original due date, membership privileges shall be automatically suspended. During suspension, the member loses voting rights, cannot hold office, and may not participate in members-only events or benefit from programmes.

4.2 Reinstatement Process

1. A suspended member may apply for reinstatement within twelve (12) months of suspension.
2. Reinstatement requires:
    1. Payment of all outstanding membership fees in full.
    2. Payment of a Reinstatement Administration Fee of R250.00 (two hundred and fifty rand).
    3. Submission of a written reinstatement request to the Secretariat.

3. Upon receipt of all payments and approval by the Finance Committee, membership privileges shall be restored.

4.3 Lapse and Termination

1. If a member remains suspended for over twelve (12) months without seeking reinstatement, their membership shall be considered lapsed and automatically terminated.
2. A former member whose membership has lapsed must submit a new application and pay all current fees, including the registration fee, to rejoin.

Article 5: Fee Waivers, Reductions, and Revisions

5.1 Fee Waiver or Reduction

1. SAMN recognises that financial hardship may exist. A Regular Member may apply in writing to their **Country Branch Executive** for a partial or full waiver of the annual fee due to proven financial difficulty.
2. The Country Branch Executive, in consultation with the Continental Finance Committee, may grant a waiver or reduction on a case-by-case basis, ensuring confidentiality and dignity. The number of waivers granted per branch may be capped based on continental guidelines.

5.2 Revision of Fee Structure

1. The fee structure may be reviewed periodically to reflect economic realities and organisational needs.
2. **Proposal:** Any revision to the fee structure must be proposed by the **Finance Committee**, supported by a detailed rationale and financial impact assessment.
3. **Approval:** Proposed revisions require a **two-thirds (2/3) majority vote** of the **Executive Committee (EXCO)** for preliminary approval.
4. **Ratification:** All fee revisions approved by EXCO must be presented for **final ratification by a simple majority vote** at the next **Annual General Meeting (AGM)**.
5. **Notice:** Approved changes shall be communicated to all members at least **ninety (90) days** before they take effect.

Article 6: Use of Membership Funds

All membership fees and dues shall be allocated exclusively to support the operational and programmatic objectives of SAMN as outlined in the annual budget, including but not limited to:

1. Administrative and Secretariat operations.
2. Continental programmes, training, and conferences.
3. Communication and advocacy initiatives.
4. Grants and support to Country Branches.
5. Capacity-building for members.

SCHEDULE II: COUNTRY BRANCH STRUCTURES

Article 1: Establishment and Recognition

1.1 Founding Requirements

1. **Minimum Membership:** A provisional Country Branch may be established in any Southern African country with a minimum of **ten (10) registered Regular Members (Ambassadors)** who are citizens or legal residents of that country.
2. **Application Process:** The founding members shall submit a formal application to the Continental Executive Committee (EXCO) containing:
   - A signed petition from the ten founding Regular Members.
   - A proposed interim leadership team.
   - A draft one-year activity plan aligned with SAMN's continental objectives.
3. **Official Recognition:** Upon review and approval by EXCO, the branch will receive an official **Charter of Recognition**, granting it full status as a SAMN Country Branch.

1.2 Geographical Scope and Sub-Branches

- Each country shall have one **Primary Country Branch** recognised by the Continental Secretariat.
- In countries with significant geographical spread, the Primary Branch may, with EXCO approval, establish **Regional Sub-Branches** to improve local engagement. Sub-Branches operate under the direct authority and reporting structure of the Primary Country Branch.

Article 2: Branch Governance and Leadership

2.1 The Branch Executive Committee (BEC)

Each Country Branch shall be governed by a Branch Executive Committee (BEC), elected by and from its Regular Members. The BEC shall comprise the following mandatory officers:

2.1.1 Branch Chairperson

- Serves as the chief executive officer of the branch.
- Represents the branch at continental forums and to national stakeholders.
- Presides over all branch meetings and is a signatory to branch accounts.

2.1.2 Branch Vice-Chairperson

- Assists the Chairperson and assumes duties in their absence.
- Often oversees internal branch committees or specific portfolio areas.

2.1.3 Branch Secretary

- Maintains all branch records, minutes, and correspondence.
- Manages branch membership rolls and reports changes to the Continental Secretariat.
- Ensures timely submission of branch reports.

2.1.4 Branch Treasurer

- Manages all branch finances, prepares budgets, and maintains financial records.
- Provides quarterly financial reports to the branch membership and the Continental Treasurer.
- Ensures compliance with financial policies.

2.1.5 Branch Programmes Officer

- Leads the planning, implementation, and evaluation of all branch programmes and projects.
- Acts as the liaison with the Continental Projects Committee.

2.1.6 Branch Communications Officer

- Manages the branch's local communications, including social media, newsletters, and media relations.
- Ensures alignment with the continental communications strategy.

2.2 Election and Terms

- BEC members shall be elected through a secret ballot at a Branch Annual General Meeting (BAGM).
- Terms shall be **two (2) years**, with a maximum of **two (2) consecutive terms** in the same office.
- Elections shall be supervised by a neutral official from the Continental Secretariat or a designated neighbouring Country Branch.

Article 3: Reporting, Accountability, and Compliance

3.1 Mandatory Reporting to Continental Secretariat

Country Branches are accountable to the Continental Executive Committee and must submit:

1. **Quarterly Activity Reports:** Due within 15 days of the quarter's end, detailing programme implementation, challenges, and outcomes.
2. **Quarterly Financial Reports:** Due within 15 days of the quarter's end, including bank statements, income/expenditure reports, and proof of remittance of the continental levy (see Article 4).
3. **Annual Report:** A comprehensive report for the fiscal year, submitted 30 days prior to the Continental AGM, for consolidation into the continental annual report.

3.2 Constitutional and Policy Compliance

- Country Branches shall operate strictly in accordance with the **SAMN Continental Constitution**, all policies, and the **Code of Conduct**.
- No branch may adopt a constitution or bylaws that contradict the Continental Constitution.
- Branches must seek written approval from EXCO before engaging in partnerships or signing agreements that commit SAMN's name or resources at a national level.

Article 4: Financial Management and Autonomy

4.1 Financial Autonomy and Levies

1. **Local Fundraising:** Branches are encouraged to raise funds locally to support their activities.

2. **Continental Levy:** To support continental administration and programmes, each branch shall remit **20% of its locally generated income** (from donations, grants, and local membership fees) to the Continental Secretariat on a **quarterly basis**. This does not include funds specifically granted by the continental body or external donors for branch-specific projects.
3. **Separate Bank Account:** Each branch must maintain a **dedicated, auditable bank account** in the branch's official name (e.g., "SAMN - [Country Name] Branch"). Signatories shall include at least the Branch Chairperson and Treasurer.

4.2 Audit Requirements

- Branch finances are subject to an **annual internal audit** conducted by the Continental Finance Committee or its appointees.
- Branches receiving significant external funding may be required to undergo an external audit at the discretion of EXCO.

Article 5: Dissolution and De-Recognition of a Branch

5.1 Grounds for Dissolution

The Continental Executive Committee may initiate dissolution proceedings for a Country Branch on the following grounds:

- **Persistent Non-Compliance:** Repeated failure to submit reports, adhere to policies, or follow lawful directives from EXCO.
- **Financial Mismanagement:** Fraud, embezzlement, or gross negligence in handling funds as confirmed by an audit.
- **Inactivity:** Failure to hold meetings, implement programmes, or demonstrate active engagement for a period exceeding **twelve (12) months**.
- **Actions Bringing SAMN into Disrepute:** Conduct that severely damages the reputation of SAMN at a national or continental level.

5.2 Dissolution Process

1. **Notice of Concern:** EXCO shall issue a formal written notice to the branch, specifying the concerns and allowing a **60-day remediation period**.
2. **Hearing:** If concerns are not adequately addressed, EXCO shall convene a hearing with the branch leadership.
3. **Vote for Dissolution:** A resolution for dissolution requires a **two-thirds (2/3) majority vote** of the full Continental Executive Committee.
4. **Asset Handling:** Upon dissolution, all remaining assets of the branch, after settlement of legitimate liabilities, shall be transferred to the Continental Secretariat. The SAMN name, logo, and intellectual property revert to the continental body.

SCHEDULE III: DUTIES OF OFFICERS

Article 1: Chairperson

1.1 **Strategic Leadership & Vision:** Provide overall strategic direction and leadership for SAMN in line with the Constitution and AGM mandates. Serve as the primary custodian of SAMN's vision and long-term goals.
1.2 **Presiding Officer:** Officially preside over all meetings of the Executive Committee (EXCO), the Annual General Meeting (AGM), and any Special General Meetings.
1.3 **Chief Representative:** Act as the principal official spokesperson and representative of SAMN at high-level continental and international forums, with governments, partner organisations, and the media.
1.4 **Governance Oversight:** Ensure EXCO functions effectively, agendas are focused, and decisions are implemented. Facilitate cohesion and collaboration among EXCO members.
1.5 **Financial & Legal Authority:** Serve as one of the mandated signatories (see Section 8.4.2) for major financial transactions, contracts, and legal documents, as per the Financial Policy.

Article 2: Vice Chairperson

2.1 **Deputy Leadership:** Perform all duties of the Chairperson in their absence, incapacity, or upon delegation. Maintain close familiarity with all portfolios in order to assume leadership duties effectively when required.
2.2 **Inter-Branch Coordination:** Spearhead initiatives to foster collaboration, knowledge-sharing, and joint programmes between different Country Branches.
2.3 **Capacity Building:** Oversee the design and implementation of leadership and capacity-building programmes for branch leaders and members.
2.4 **Special Projects:** Lead specific cross-cutting projects or task forces as assigned by the Chairperson or EXCO.

Article 3: Secretary

3.1 **Record Keeping:** Serve as the custodian of all official SAMN records, including the Constitution, minutes, resolutions, policies, and official correspondence.
3.2 **Meeting Management:** Prepare and circulate agendas for EXCO and AGM meetings in consultation with the Chairperson. Accurately record minutes, capturing decisions, action items, and responsibilities.
3.3 **Membership Administration:** Maintain the official, up-to-date register of all members (Continental and Branches) and ensure compliance with membership criteria.
3.4 **Constitutional Compliance:** Advise EXCO on procedural and constitutional matters. Ensure notices for meetings are issued as per constitutional requirements.
3.5 **Communications Liaison:** Work closely with the Communications Officer to ensure accurate internal dissemination of EXCO decisions and official documents.

Article 4: Vice Secretary

4.1 **Administrative Support:** Assist the Secretary in all duties, including drafting correspondence, filing records, and managing the document archive.
4.2 **Branch Liaison:** Serve as a primary point of contact for Country Branches regarding administrative

queries, report submissions, and information requests.
4.3 **Acting Secretary:** Assume the full responsibilities of the Secretary in their absence.
4.4 **Logistics Coordination:** Assist in the logistical coordination of EXCO meetings, AGMs, and other major continental gatherings.

Article 5: Treasurer

5.1 **Financial Management & Strategy:** Develop and oversee the implementation of SAMN's financial strategy, annual budgets, and long-term financial sustainability plans.
5.2 **Financial Operations:** Manage all bank accounts, investments, and cash flow. Authorise expenditures in accordance with the approved budget and financial policies.
5.3 **Financial Reporting:** Prepare timely and accurate financial statements (quarterly for EXCO and annually for audit) for presentation to EXCO and the AGM.
5.4 **Fundraising & Donor Relations:** Lead continental fundraising efforts, develop donor proposals, and manage relationships with key institutional donors and partners in coordination with the Chairperson.
5.5 **Audit & Compliance:** Liaise with external auditors, ensure a clean audit process, and guarantee compliance with all financial regulations and donor requirements. Implement robust internal financial controls.

Article 6: Communications Officer

6.1 **Communications Strategy:** Develop, implement, and evaluate a comprehensive continental communications and public engagement strategy.
6.2 **Media & Public Relations:** Act as the primary media contact. Draft press releases, organise press conferences, and cultivate relationships with journalists and media houses.
6.3 **Digital Presence:** Manage SAMN's continental website and official social media platforms, ensuring content is current, engaging, and aligns with SAMN's brand identity.
6.4 **Content Creation & Dissemination:** Oversee the production of high-quality content, including the annual report, newsletters, policy briefs, advocacy materials, and multimedia products.
6.5 **Brand & Reputation Management:** Protect and promote SAMN's brand identity. Monitor public perception and manage communications during any crisis or reputational challenge.
6.6 **Internal Communications:** Facilitate effective internal communication from the EXCO to branches and members.

SCHEDULE IV: COMMITTEE FUNCTIONS

Article 1: Finance Committee

1.1 Mandate

To ensure the financial integrity, sustainability, and transparency of SAMN by overseeing all financial planning, management, reporting, and compliance.

1.2 Composition

- Chair: Treasurer (ex officio)
- Members: At least three (3) appointed members with financial, accounting, or audit expertise, approved by the Executive Committee (EXCO).
- Secretariat Support: Finance Officer (non-voting)

1.3 Key Functions & Responsibilities

1. **Budgetary Oversight**
   - Review and recommend the annual operating budget to EXCO for approval.
   - Monitor budget performance quarterly and report variances to EXCO.
   - Approve any budget reallocations exceeding 10% of line items.
2. **Financial Policy & Compliance**
   - Develop and review financial policies, including procurement, expense management, and asset control.
   - Ensure compliance with national and regional financial regulations and donor requirements.
   - Implement and monitor internal financial controls.
3. **Audit & Accountability**
   - Recommend the appointment of external auditors for approval at the AGM.
   - Liaise with auditors, review audit reports, and ensure implementation of audit recommendations.
   - Present audited financial statements to the AGM.
4. **Fund Management & Mobilisation**
   - Advise on investment and reserve fund policies.
   - Review and endorse major fundraising proposals and donor agreements.
   - Monitor cash flow and liquidity to ensure operational stability.

1.4 Meeting Frequency

- Quarterly, or as necessitated by financial reporting cycles.

Article 2: Ethics & Disciplinary Committee

2.1 Mandate

To uphold the SAMN Code of Conduct, ensure ethical behaviour across the network, and administer fair and just disciplinary procedures.

2.2 Composition

- Chair: Appointed by EXCO from among respected senior members not currently in EXCO.
- Members: Four (4) members known for integrity and impartiality, including at least one member with legal or mediation experience.
- All members serve staggered three-year terms.

2.3 Key Functions & Responsibilities

1. **Code of Conduct Guardianship**
   - Interpret, promote, and periodically review the SAMN Code of Conduct (Schedule V).
   - Provide advisory opinions on ethical dilemmas to members and EXCO.
2. **Complaint Intake & Investigation**
   - Receive and formally record written complaints regarding misconduct.
   - Conduct prompt, impartial, and confidential investigations.
   - Interview complainants, respondents, and witnesses; gather evidence.
3. **Adjudication & Recommendations**
   - Determine whether a breach of the Code of Conduct has occurred.
   - Recommend sanctions to EXCO, which may include:
     - Written warning
     - Suspension of membership privileges
     - Removal from office
     - Expulsion from SAMN
   - Ensure proportionality between the breach and the recommended sanction.
4. **Grievance Procedure Management**
   - Maintain clear, accessible, and transparent grievance procedures.
   - Protect the rights of all parties, including the right to be heard and the right to appeal.

2.4 Meeting Frequency

- As needed upon receipt of a complaint; quarterly for procedural reviews.

Article 3: Communications Committee

3.1 Mandate

To shape, protect, and amplify SAMN's public voice, brand, and digital presence in alignment with its mission and values.

3.2 Composition

- Chair: Communications Officer (ex officio)
- Members: At least four (4) members with expertise in media, digital content, public relations, or journalism.
- EXCO Liaison: Vice Chairperson or designate.

3.3 Key Functions & Responsibilities

1. **Strategic Communications Planning**
   - Develop and implement an annual communications strategy.
   - Define key messages, target audiences, and channels for continental and national advocacy.
2. **Content Creation & Dissemination**
   - Oversee the production of newsletters, press releases, policy briefs, and annual reports.
   - Manage the SAMN website and all official social media accounts.
   - Develop multimedia content (videos, podcasts, infographics).
3. **Media & Public Relations**
   - Serve as the central liaison for all media inquiries.
   - Organise press conferences and manage media partnerships.
   - Monitor media coverage and public perception of SAMN.
4. **Brand & Reputation Management**
   - Ensure consistent use of SAMN's visual identity and tone of voice across all platforms.
   - Develop crisis communication protocols and respond to reputational issues.

3.4 Meeting Frequency

- Monthly, or as required by campaign cycles.

Article 4: Projects Committee

4.1 Mandate

To ensure the effective design, implementation, monitoring, and evaluation of all SAMN programmes and projects to maximise impact and accountability.

4.2 Composition

- Chair: Appointed by EXCO, typically a member with project management expertise.
- Members: Five (5) members representing diverse thematic areas (e.g., education, health, economic empowerment).
- Secretariat Support: Programmes Manager (non-voting).

4.3 Key Functions & Responsibilities

1. **Project Identification & Design**
   - Solicit and review project proposals from branches and the Secretariat.
   - Ensure project alignment with SAMN's strategic objectives and continental workplan.
   - Assist in proposal development for donor funding.

2. **Oversight & Implementation Support**
   - Approve detailed project implementation plans and budgets.
   - Monitor project timelines, deliverables, and expenditure against budgets.
   - Provide problem-solving support to project managers.
3. **Monitoring, Evaluation & Learning (MEL)**
   - Develop and oversee a continental MEL framework.
   - Review quarterly and final project reports.
   - Capture lessons learned and recommend improvements for future projects.
4. **Reporting & Accountability**
   - Consolidate project reports for EXCO and donor review.
   - Ensure projects meet their stated goals and deliver value to beneficiaries.

4.4 Meeting Frequency

- Bi-monthly, and ad-hoc during project inception and closure phases.

Article 5: Convention Committee

5.1 Mandate

To plan, organise, and execute SAMN's flagship events, including the Annual General Meeting, Continental Convention, and other major regional gatherings.

5.2 Composition

- Chair: Appointed by EXCO for a one-year term leading up to the main event.
- Members: A dedicated team of 6-8 members, including representatives from Logistics, Programming, Finance, and Communications.
- Host Country Representative(s): Included when applicable.

5.3 Key Functions & Responsibilities

1. **Strategic Event Planning**
   - Set themes, objectives, and formats for SAMN's major conventions in consultation with EXCO.
   - Develop master event timelines and critical paths.
2. **Logistics & Operations**
   - Secure venues, negotiate contracts with vendors (catering, AV, accommodation).
   - Manage event registration, participant travel, and on-site coordination.
   - Oversee health, safety, and accessibility protocols.
3. **Programme Development & Speaker Management**
   - Design the conference agenda and secure keynote speakers, panelists, and facilitators.
   - Organise workshops, networking sessions, and cultural events.
4. **Stakeholder Engagement & Protocol**
   - Coordinate invitations for dignitaries, partners, sponsors, and media.

- Manage protocol, official receptions, and guest relations.

5. **Post-Event Review**
   - Conduct a comprehensive post-event evaluation.
   - Finalise financial reconciliation and reporting.

5.4 Meeting Frequency

- Monthly, intensifying to weekly in the three months leading up to a major event.

Article 6: Appeals Committee

6.1 Mandate

To provide a final, impartial, and internal appellate review of disciplinary decisions, safeguarding the principles of natural justice within SAMN.

6.2 Composition

- Chair: A person of high standing, such as a Trustee or a former EXCO member, appointed by the Board of Trustees.
- Members: Two (2) other members appointed for their independence, wisdom, and understanding of SAMN's governance. No member may have served on the Ethics & Disciplinary Committee for the case under appeal.

6.3 Key Functions & Responsibilities

1. **Appellate Review**
   - Hear and review appeals submitted by any member sanctioned by the Ethics & Disciplinary Committee.
   - Appeals must be lodged in writing within **14 calendar days** of the original decision.
2. **Due Process Assurance**
   - Review the procedures followed by the Ethics & Disciplinary Committee to ensure fairness and compliance with SAMN's Constitution.
   - May request additional documentation, hold a hearing, or call for written submissions.
3. **Adjudication & Final Decision**
   - May uphold, modify, or overturn the decision of the Ethics & Disciplinary Committee.
   - The decision of the Appeals Committee is **final and binding** within SAMN's internal governance structure.
   - Communicate its reasoned decision in writing to all parties and EXCO within 60 days of receiving the appeal.

6.4 Meeting Frequency

- Constituted on an ad-hoc basis as appeals are filed.

SCHEDULE V: CODE OF CONDUCT

Preamble

The Southern Africa Muslimah Network (SAMN) is a faith-based organisation rooted in Islamic principles. This Code of Conduct establishes the ethical and behavioural standards expected of all members, officers, volunteers, and representatives of SAMN. Adherence to this Code is essential to maintain the integrity, unity, and effectiveness of our Network and to fulfil our mission in accordance with the teachings of the Qur'an and Sunnah.

Article 1: Foundational Principles

1.0 Preamble to Principles

The Foundational Principles constitute the ethical bedrock of the Southern Africa Muslimah Network (SAMN). They are derived from Islamic values and universal standards of ethical conduct. Every member, officer, volunteer, staff, and representative of SAMN ("Covered Individuals") is bound by these principles in both their official capacities and in any personal conduct that reflects upon the Network.

1.1 Commitment to Islamic Teachings

1.1.1 Guiding Framework

All actions, programmes, policies, and personal conduct undertaken in the name of SAMN must be consciously aligned with the teachings of the Qur'an and the authentic Sunnah (traditions and practices) of the Prophet Muhammad (peace be upon him). This alignment is the primary filter for all organisational decision-making.

1.1.2 Practical Applications

- **Programme Design:** All educational, advocacy, and social programmes initiated or endorsed by SAMN shall be designed to reflect and promote Islamic ethics, avoiding contradictions with established Islamic rulings (halal and haram).
- **Personal Behaviour:** Covered Individuals are expected to embody Islamic adab (etiquette) in their interactions, dress modestly (hijab where applicable) at SAMN events, and observe Islamic obligations to the best of their ability when representing the Network.
- **Promotion of Core Values:** In all undertakings, Covered Individuals shall actively promote the fundamental Islamic values of:
  - **Understanding (Fahm):** Seeking knowledge, wisdom, and clarity.
  - **Compassion (Rahma):** Showing mercy, kindness, and empathy towards all creation.
  - **Justice (Adl):** Upholding fairness, equity, and the rights of all individuals.

1.1.3 Conflict Resolution

In matters where differing Islamic interpretations arise, SAMN shall adopt a posture of respectful dialogue, prioritise areas of common ground as established by mainstream Islamic scholarship (Ahlus-Sunnah wal-Jama'ah), and defer to qualified Shariah advisors when necessary.

1.2 Integrity and Honesty (AMANAH)

1.2.1 Concept of Amanah (Trust)

Covered Individuals shall treat their roles within SAMN as a sacred trust (Amanah) from Allah and the Muslim community. This requires unwavering honesty and moral fortitude.

1.2.2 Key Behavioural Standards

- **Truthfulness (Sidq):** Communicate honestly in all matters. Do not knowingly misrepresent facts, data, or the status of projects.
- **Sincerity (Ikhlas):** Act for the sake of pleasing Allah and serving the mission of SAMN, not for personal acclaim, gain, or factional advantage.
- **Moral Courage:** Uphold what is right and speak out against what is wrong within the organisation, using proper channels, even when it is difficult or unpopular.
- **Transparency:** Ensure that decisions, especially those involving resources, partnerships, or strategic direction, are made through processes that are open to appropriate scrutiny by authorised bodies (e.g., Executive Committee, Trustees).
- **Accountability:** Take full responsibility for assigned tasks. Diligently fulfil all promises made to colleagues, members, partners, and beneficiaries. Acknowledge and learn from mistakes.

1.3 Respect and Inclusivity

1.3.1 Basis of Respect

Respect is founded on the Islamic principle that all human beings are honoured by Allah. Covered Individuals must treat every person with inherent dignity (karamah).

1.3.2 Scope of Inclusivity

SAMN embraces the rich diversity within the global Muslim community (Ummah) and the broader human family. Covered Individuals shall:

- **Refrain from Discrimination:** Actively avoid and challenge prejudice based on:
  - Ethnicity or Tribe
  - Nationality or Citizenship
  - School of Islamic Jurisprudence (Madhab)
  - Socioeconomic Status
  - Age
  - Physical or Mental Ability
- **Foster an Inclusive Environment:** Create spaces in meetings, events, and digital forums where diverse voices are heard, valued, and considered. This includes ensuring accessibility and accommodations where possible.
- **Engage in Constructive Dialogue:** Disagreements must be addressed with courtesy (hilm), seeking common understanding. Debate the idea, not the person. Avoid inflammatory language, insults (sabb), or accusations (tuhmah).

1.3.3 Limits of Inclusivity

Inclusivity operates within the framework of Islamic ethics. SAMN does not endorse perspectives or behaviours that fundamentally contradict the core tenets of Islamic belief (Aqeedah) or clear Islamic law (Shariah).

1.4 Confidentiality

1.4.1 Definition of Confidential Information

Confidential information includes any non-public information acquired through one's role in SAMN, such as:

- **Internal Affairs:** Minutes of sensitive meetings, unreleased strategic plans, internal financial data, and unpublished reports.
- **Member/Beneficiary Information:** Personal contact details, family circumstances, donation records, and case details shared in trust.
- **Partner Information:** Private correspondence, unpublished agreements, and proprietary information shared by partner organisations.

1.4.2 Duty to Safeguard

- Covered Individuals must take reasonable steps to protect confidential information from unauthorised access, use, or disclosure. This includes secure storage of documents and responsible digital communication.
- Discussion of confidential matters should be limited to individuals who have a legitimate "need to know" for official purposes.

1.4.3 Permitted Disclosure

Confidential information may only be disclosed without consent when:

- **Legally Required:** By a court order, subpoena, or other lawful mandate.
- **Expressly Authorised:** By the Executive Committee or the individual to whom the information pertains.
- **To Prevent Harm:** There is a reasonable belief that disclosure is necessary to prevent imminent and serious physical harm to a person or to report criminal activity internally to the Ethics & Disciplinary Committee (EDC).

1.4.4 Duration of Obligation

The duty of confidentiality continues even after an individual's membership, employment, or official role with SAMN has ended.

Article 2: Standards of Professional Conduct

2.1 Conflict of Interest

- Members and officers must avoid situations where personal, familial, financial, or professional interests could improperly influence, or appear to influence, their judgement or duties to SAMN.
- Any actual or potential conflict of interest must be disclosed in writing to the Ethics & Disciplinary Committee immediately upon recognition.

- Refrain from using one's position in SAMN for personal gain or the gain of close associates.

2.2 Stewardship of Resources

- Use SAMN funds, property, equipment, and intellectual resources responsibly, efficiently, and solely for the authorised purposes of the Network.
- Exercise sound financial judgement and comply with all financial policies and procedures.
- Report any suspected misuse or misappropriation of resources immediately.

2.3 Respectful Communication and Conduct

- Communicate in a manner that is respectful, professional, and constructive, both within SAMN and with external partners, whether in person, in writing, or online.
- Refrain from engaging in gossip (ghibah), slander, or making false accusations.
- Resolve disagreements through proper channels and mediated dialogue, not through public disparagement.

2.4 Representation of SAMN

- Represent SAMN's mission and positions accurately and consistently.
- Clearly distinguish between personal opinions and the official stance of SAMN when speaking publicly on issues related to the Network's work.
- Uphold the reputation of SAMN and refrain from any conduct that could bring the Network into disrepute.

Article 3: Prohibited Conduct (Breaches)

Conduct constituting a breach of this Code includes, but is not limited to:

3.1 Financial and Asset Mismanagement

- Theft, fraud, embezzlement, or deliberate misuse of SAMN funds or assets.
- Falsification of financial records, receipts, or reports.
- Unauthorised use of the SAMN name, logo, or resources for personal benefit.

3.2 Unethical and Harmful Behaviour

- Any form of harassment, including sexual, psychological, or verbal harassment.
- Discrimination based on race, ethnicity, tribe, nationality, age, disability, or marital status.
- Bullying, intimidation, or creating a hostile environment for any member or stakeholder.
- Abuse of power or position for coercion or unfair advantage.

3.3 Damage to Organisational Integrity

- Willful violation of SAMN's Constitution, policies, or lawful directives of governing bodies.
- Disclosure of confidential information without authorisation.
- Making public statements that severely damage the cohesion, public image, or operational effectiveness of SAMN.
- Knowingly associating SAMN with individuals, groups, or activities fundamentally opposed to its Islamic values and objectives.

Article 4: Disciplinary Procedure

4.1 Initiation of Complaint

- Any alleged breach must be reported in writing to the **Ethics & Disciplinary Committee (EDC)** Chairperson.
- The complaint should include specific details: date, time, location, description of the incident, names of involved parties and witnesses, and any supporting evidence.

4.2 Preliminary Review

- The EDC Chairperson will conduct a preliminary review within **7 days** to determine if the complaint falls within the Committee's mandate and merits a full investigation.
- The respondent will be formally notified in writing of the complaint and the initiation of the process.

4.3 Investigation

- The EDC shall appoint an Investigation Panel to conduct a thorough, impartial, and confidential investigation.
- The investigation should be completed within **30 calendar days** of its initiation, unless a complex case requires a justified extension, communicated to all parties.
- All parties have the right to present evidence, suggest witnesses, and be accompanied by a support person (who is not a legal representative) during interviews.

4.4 Hearing and Determination

- Upon completion of the investigation, the full EDC shall convene a hearing to consider the findings.
- The respondent has the right to attend the hearing, respond to the allegations, and hear the evidence.
- The EDC shall deliberate in private and reach a decision based on the balance of probabilities.
- Possible determinations include:
  a. **No Breach Found:** Case dismissed.
  b. **Breach Found, No Sanction:** Issuance of guidance or admonishment.
  c. **Breach Found with Sanction:** Including:
  * **Formal Written Warning**
  * **Suspension** from specific duties or full membership for a defined period.
  * **Removal** from an elected or appointed office.
  * **Expulsion** from SAMN membership.

4.5 Notification

- The EDC shall issue a written finding and decision to the respondent, the complainant, and the Executive Committee (EXCO) within **10 days** of the hearing.
- EXCO is responsible for implementing the sanctioned actions.

Article 5: Appeals Process

5.1 Right to Appeal

- A respondent found in breach and sanctioned has the right to appeal the decision.

- Grounds for appeal are limited to: (i) procedural error that materially affected the outcome, (ii) new and significant evidence not available during the investigation, or (iii) the sanction being grossly disproportionate to the breach.

5.2 Appeal Submission

- A written appeal must be submitted to the **Chair of the Appeals Committee** within **14 calendar days** of receiving the EDC's written decision.
- The appeal must state the specific grounds and include any supporting documentation.

5.3 Appeal Consideration

- The Appeals Committee will review the case file, the EDC's record, and the written appeal.
- It may, at its discretion, request written submissions from the parties or convene a hearing.
- The Appeals Committee will not re-investigate the facts but will assess whether the EDC's process was fair and its decision reasonable.

5.4 Final Decision

- The Appeals Committee may:
  a. **Uphold** the original decision and sanction.
  b. **Modify** the sanction.
  c. **Overturn** the decision and refer the matter back to the EDC with instructions, or dismiss the case entirely.
- The decision of the Appeals Committee is **final and binding** on all parties and within SAMN's internal governance structure.
- Written notice of the final decision will be provided to all parties and EXCO.

This Code of Conduct is hereby adopted and shall be binding upon all members and representatives of the Southern Africa Muslimah Network.